

HOUSE No. 4614

The Commonwealth of Massachusetts

PRESENTED BY:

Estela A. Reyes and Frank A. Moran

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act in relation to James J. O'Neil Park.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>10/9/2025</i>
<i>Frank A. Moran</i>	<i>17th Essex</i>	<i>10/9/2025</i>

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By Representatives Reyes of Lawrence and Moran of Lawrence, a petition (accompanied by bill, House, No. 4614) of Estela A. Reyes and Frank A. Moran (with the approval of the mayor and city council) that the city of Lawrence be authorized to transfer a certain parcel of park land at the James J. O'Neil Park in said city. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act in relation to James J. O'Neil Park.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of any general or special law to the contrary
2 and pursuant to the provisions of Article 97 of the Amendments to the Constitution of the
3 Commonwealth of Massachusetts, and in recognition of the fact that the transfer of right, title
4 and interest in and to the below-described land by the City of Lawrence will not derogate from or
5 otherwise impact the protections of Article 97 which limit and restrict the use of said property to
6 use for open space, conservation and passive recreation purposes, consistent with the provisions
7 of Massachusetts General Laws, Chapter 40, Section 8C and said Article 97, the City Council
8 and Conservation Commission of the City of Lawrence are hereby authorized to transfer and
9 convey by sale or exchange a portion of that certain parcel of City owned park land designated
10 on the Lawrence Assessors' Map 128 Lot 39, located at the James J. O'Neil Park at the
11 intersection of Lawrence Street and Chestnut Street-consisting of Seventy-seven (77) square feet,

12 more or less, as shown on the Plan of Land dated February 9, 2023 and titled Amesbury Street
13 Right of Way Plans-Lawrence Property Plans, and in consideration of said transfer, the City shall
14 be authorized to acquire title to a portion of that certain parcel of land designated as Parcel X
15 consisting of Three Hundred and Thirty Three (363) square feet, more or less, as more
16 specifically shown on said Plan by purchase from or exchange with owners thereof for recreation
17 purposes, consistent with the provisions of Mass. Gen. Laws. Ch. 40, Section &C and Article 97
18 of the Amendments to the Constitution of the Commonwealth of Massachusetts.

19 SECTION 2. No document or instrument conveying any interest in the subject property
20 described hereinabove shall be valid unless such document or instrument provides that the
21 interest in the land designated on Lawrence's Assessors' Map 128 Lot 39, presently located at
22 Lawrence Street, shall, upon transfer to the City of Lawrence, be held and maintained by the City
23 solely for open space, conservation and passive recreation purposes, consistent with the
24 provisions of Massachusetts General Laws, Chapter 40, Section &C and Article 97 of the
25 Amendments to the Constitution of the Commonwealth of Massachusetts.

26 SECTION 3. This act shall take effect upon passage.